

		to strike “punitive style allegations” found in Paragraphs 38, 39 and 42 are MOOT. The motion to strike plaintiff’s reference to a dollar amount of damages as stated in Paragraphs 28, 32, 36, 40, 44, 51, 57, and Prayer ¶ 1 is DENIED. (See Code of Civil Procedure §425.10.) The motion to strike the request for attorney’s fees in the prayer for damages is GRANTED. No statutory or contractual basis is provided. (Code of Civil Procedure §1021) The court continues the CMC to 9/28/26 at 8:45am. Defendants shall give notice.
306	<i>Carreno Garcia vs. LA Veta Healthcare, INC.</i>	The motion to compel arbitration of the claims of plaintiff Martin Carreno Garcia (Plaintiff) filed by defendants La Veta Healthcare, Inc. and The Ensign Group, Inc. (collectively, Defendants) is CONTINUED for an evidentiary hearing. Plaintiff contends there is no mutual assent here because he does not read or speak English and thus did not know what he was signing, and Defendants knew this but nevertheless required Plaintiff to sign the subject arbitration agreement with no translation. The evidence submitted by the parties shows two sharply conflicting factual accounts as to Plaintiff’s claimed inability to read or speak English and as to whether Defendants knew Plaintiff could not read or speak English. Due to the foregoing factual disputes, the court finds an evidentiary hearing is appropriate to address these issues. (See <i>Hotels Nevada v. L.A. Pac. Ctr., Inc.</i> (2006) 144 Cal.App.4th 754, 762-763.)

		The court will hear from the parties at the hearing as to scheduling of a date for the evidentiary hearing and a continued date for the CMC. Defendants shall give notice.
308	<i>Law Offices of Joseph P. McGinley vs. Falck Mobile Health, Inc.</i>	Before the court is an unopposed Motion Directing Interpleading of Funds (Motion) filed by plaintiff Law Offices of Joseph B. McGinley (Plaintiff). The hearing is CONTINUED to July 6, 2026 at 1:30pm. Plaintiff has not filed the subject funds with the court. The Motion is based upon Code of Civil Procedure sections 386 and 386.5. Under those code sections and for the court to grant the Motion, the moving party must provide an affidavit that it was no interest in the funds it seeks to deposit with the court. The affidavit is also required for the party to recover attorney fees under Code of Civil Procedure section 386.6, subdivision (a). The declaration of Joseph B. McGinley does not contain the required statements. The hearing is continued for Plaintiff to file and timely serve a supplemental affidavit that complies with the code. The CMC is continued to 7/6/26 at 1:30pm. Plaintiff shall give notice.
311	<i>Moon vs. TruAbutment Inc.</i>	Before the Court is a motion by Petitioners Peter Moon and Haengoh Kim in which they seek an order entering a judgment on their Petition for Writ of Mandamus To Compel Inspection of Corporate Books and Records. The Petition is GRANTED, in part, and DENIED, in part, as set forth herein. On December 29, 2025, Petitioners filed a Petition seeking an order that Respondents TruAbutment Inc., Hyung T. Park, Sang H. Yoo, Hyung Ick Kim, Stella K. Kim, and Ron Nguyen “produce electronically to Petitioners' attorney's, Cadden &